

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: August 27, 2026

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1.	Jones v. California Premier Builders 25-1534997	(Withdrawn)
2.	Mags Global Capital LLC v. Granite Escrow & Settlement Services 25-1460632	Before the Court is the unopposed application of attorney David Aaron to appear in this matter pro hac vice as counsel for plaintiff Mags Global Capital LLC.

		The Court finds good cause to grant the relief requested. Accordingly, the application is GRANTED. (<i>Cal. Rules of Ct., rule 9.40.</i>) <i>Mr. Aaron is ordered to give notice of this ruling.</i>
3.	Delatorre v. Smith 25-1498067	(<i>Notice of Conditional Settlement filed</i>)
4.	Enriquez v. Avila 26-1554734	(<i>off calendar</i>)
5.	Andresen v. Watermeier	Before the court are unopposed 1) and 2) motions to compel plaintiff Christina Compani's initial responses to sets one of special interrogatories and requests for production, and 3) a motion to deem requests for admission set one as admitted, filed by pro per defendant David Watermeier ("Defendant"). The unopposed motions are each DENIED without prejudice. The proofs of service filed with the motions indicates electronic service, however they fail to include the required name and electronic service address of the person(s) served. (<i>Civ. Proc. Code § 1013b(b)(3).</i>) As the proofs of service are improper and do not show service of the motions on all the parties who have made appearances in this action, the motions are denied without prejudice to Defendant refiling and properly serving the other parties in this action. The court also notes Defendant failed to include the underlying discovery requests with the motions along with proofs of service of the requests properly being served on Watermeier. <i>Defendant to give notice.</i>
6.	Millen v. General Motors LLC 26-1554736	(<i>off calendar</i>)
7.	Rodriguez v. Summergreen Homeowners Association 24-1378892	(<i>Moot</i>)
8.	Crossroads Equipment Lease and Finance, LLC v. Trophy Transport and Towing 25-1464116	(<i>Moot</i>)
9.	Madar v. Kaiser Foundation Hospitals 23-1348123	Before the court is a motion for summary adjudication filed by defendant Bartlett Care Center, LLC dba French Park Care Center (Bartlett or French Park) and a motion for summary judgment, or summary adjudication in the alternative, filed by defendant Sun Mar Management Services (Sun Mar) on the complaint of plaintiffs Gavril Madar (Decedent), by and through his successor in interest, Sefora Madar, Sefora Madar, and Mary Madar (Plaintiffs). For the reasons set forth below, the motions are DENIED. Bartlett Motion for Summary Adjudication The new evidence submitted for the first time with the reply was not considered. (ROA 188; <i>Code of Civ. Proc. § 437c, subd. (b)(4).</i>)